4255

Executive Order

Article I of the Consular Regulations, 1896, entitled "The Consular Service", is hereby canceled and the following substituted:

ARTICLE I Supersedes No. 5642

THE CONSULAR BRANCH OF THE FOREIGN SERVICE

1. *Classification.*—The consular branch of the Foreign Service of the United States consists, first, of Foreign Service officers duly appointed by the President and assigned to duty as consuls general, Foreign Service inspectors, consuls, vice consuls, and student interpreters. These are known as "career officers". Secondly, there are non-career officers, commissioned or appointed by the Secretary of State, viz., vice consuls who are not Foreign Service officers, consular agents, and clerks at consulates.

2. *Definitions.*—"Foreign Service officer" shall be deemed to denote permanent officers in the Foreign Service below the grade of minister.—*Act of May 24, 1924, Sec. 2.*

"Consular officer" shall be deemed to include consuls general, consuls, vice consuls, student interpreters, and consular agents and none others.—*R. S. 1674, as amended, 38 Stat. L. 806.*

"Consul general" and "consul" shall be deemed to denote full, principal and permanent consular officers as distinguished from subordinates and substitutes.—*R. S. 1674, as amended, 38 Stat. L. 806.*

The term "consul", whenever the sense so requires, denotes any principal consular officer or any person invested by the United States with, and exercising, the functions of consul general, consul or vice consul.—*R. S. 4130, as amended, 19 Stat. L. 2.* As ordinarily used, in a specific sense, it denotes a particular grade of consular officer, but it is sometimes used, in a generic sense, to embrace all consular officers.—*15 C. Cls. R. 74.*

The term "vice consul" denotes any officer holding a commission as vice consul, whether he be a Foreign Service officer or not.—*R. S. 1674, as amended, 38 Stat. L. 806.*

The term "substitute consular officers" denotes vice consuls when in responsible charge of a consulate general or consulate.—*R. S. 1674, as amended, 38 Stat. L. 806.*

The term "subordinate consular officers" denotes vice consuls when not in charge of consulates general or consulates, student interpreters and consular agents.—*R. S. 1674, as amended, 38 Stat. L. 806.*

3. *Entry into the Foreign Service.*—Appointments to the position of Foreign Service officer are made after examination and a period of probation of one year in an unclassified grade or, after five years of continuous service in the Department of State, by transfer therefrom to any class in the Foreign Service upon the recommendation of the Foreign Service Personnel Board and with the approval of the Secretary of State.—*Act of May 24, 1924, Sec. 5; E. O. June 7, 1924, Sec. 5(b).* An accurate record of the efficiency of all officers and employees of the Department of State is kept for this purpose.—*38 Stat. L. 806, as amended, Act of May 24, 1924, Sec. 6.* Reinstatement of Foreign Service officers separated from the classified service by reason of appointment to some other position in the Government service may be made by Executive order of the President under such rules and regulations as he may prescribe.—*Act of May 24, 1924, Sec. 5.*

All appointments of Foreign Service officers are by commission to a class and not by commission to any particular post, and such officers are assigned to posts and may be transferred from one post to another by order of the President as the interests of the Service may require.—*Act of May 24, 1924, Sec. 5.*

New appointments to the Service are made to the grade of Foreign Service officer, unclassified. The names of candidates eligible for appointment after examination remain on an eligible list for two years except in the case of those candidates who within that period are appointed or who withdraw their names. Names which have been on the eligible list for two years are dropped therefrom and the candidates concerned are not again eligible for appointment unless upon

fresh application, designation anew for examination, and the successful passing of such examination.—*Act of May 24, 1924, Sec. 5; E. O. June 7, 1924, Sec. 2, 19.*

4. *Examination for the Foreign Service.*—(a) Examinations to determine the eligibility of candidates for the Foreign Service are held by a Board of Examiners composed as follows: The Undersecretary of State, two Assistant Secretaries of State to be designated by the Secretary of State, the Chairman of the Executive Committee of the Foreign Service Personnel Board, and the Chief Examiner of the Civil Service Commission or such person as may be designated by him to serve in his stead.

(b) It is the duty of the Board of Examiners to formulate rules for and hold examinations of applicants for commission to the Foreign Service and to determine from among the persons designated by the President for examination those who are fitted for appointment.

(c) The scope and method of the examinations is determined by the Board of Examiners, but among the subjects are included the following: at least one modern language other than English (French, Spanish, or German by preference), elements of international law, geography, the natural, industrial, and commercial resources and the commerce of the United States; American history, government and institutions; the history since 1850 of Europe, Latin America and the Far East, elements of political economy, commercial and maritime law.

(d) The examinations are both written and oral.

(e) Examinations are rated on a scale of 100, and no person rated at less than 80 is eligible for certification.

(f) No one is certified as eligible who is under twenty-one or over thirty-five years of age, or who is not a citizen of the United States, or who is not of good character and habits and physically, mentally, and temperamentally qualified for the proper performance of the duties of the Foreign Service, or who has not been specially designated by the President for appointment subject to examination and to the occurrence of an appropriate vacancy.

(g) Upon the conclusion of the examinations, the names of the candidates who have attained upon the whole examination the required rating are certified by the Board to the Secretary of State as eligible for appointment.—*E. O. June 7, 1924, Sec. 12–18.*

(h) The Secretary of State reports to the President along with his recommendations the names of persons found upon taking the prescribed examination to have fitness for appointment to the lower grades of the service.—*38 Stat. L. 806, as amended, Act of May 24, 1924, Sec. 6.*

(i) Applicants for appointment who are designated to take an examination and who fail to report therefor, are not entitled to take a subsequent examination unless they are specifically designated to take such subsequent examination.

(j) In designations for appointment subject to examination and in appointments after examination, due regard is had to the principle that as between candidates of equal merit, appointments should be made so as to tend to secure proportional representation of all the States and Territories in the Foreign Service; and neither in the designation for examination nor certification nor appointment after examination are the political affiliations of the candidates considered.

(k) The Board of Examiners issues notices and makes rules for accomplishing the objects of the foregoing regulations.—*E. O. June 7, 1924, Sec. 20–22.*

5. *Classes and salaries in the Foreign Service.*—The officers in the Foreign Service are graded and classified with the salaries of each class, as follows, but not exceeding in number for each class a proportion to the total number of officers in the Service represented in the following percentage limitations:

Ambassador, Minister,	as provided by law.
Class 1, 6 per centum,	$9,000.
Class 2, 7 per centum,	$8,000.
Class 3, 8 per centum,	$7,000.
Class 4, 9 per centum,	$6,000.
Class 5, 10 per centum,	$5,000.
Class 6, 14 per centum,	$4,500.
Class 7,	$4,000.
Class 8,	$3,500.
Class 9,	$3,000.
Unclassified	$3,000. to $1,500.

—*Act of May 24, 1924, Section 3.*

6. *Promotion in the Service and separation from the Service.*—All Foreign Service officers are subject to promotion on merit.—*Act of May 24, 1924, Sec. 2.* Vacancies in all classes from 1 to 9 are filled by promotion from lower classes, based upon ability and efficiency as shown in the Service. The Foreign Service Personnel Board submits to the Secretary of State lists of those Foreign Service officers whose records of efficiency entitle them to advancement in the Service, and who are therefore recommended for promotion. All action taken by the Board is strictly non-partisan, and based exclusively upon the record of efficiency of the officers concerned.—*E. O. June 7, 1924, Sec. 1, 5(b), 8.*

The Secretary of State reports from time to time to the President, along with his recommendations, the names of those Foreign Service officers who by reason of efficient service have demonstrated special efficiency.—*Act of May 24, 1924, Sec. 6.* No promotions from the unclassified grade to higher grades are made except on the recommendations of the Foreign Service Personnel Board, with the approval of the Secretary of State, after the completion of one full term of instruction, or the equivalent thereof in the Foreign Service School.—*E. O. June 7, 1924, Sec. 23.* Upon recommendation by the Foreign Service Personnel Board the Secretary of State reports to the President, along with his recommendations, the names of those Foreign Service officers who by reason of efficient service have demonstrated special capacity for promotion to the grade of minister. The lists thus submitted enumerate the names of the officers in the order of merit, each such list being complete in itself, superseding all previous lists. A list is submitted to the Secretary of State whenever there is a vacancy in the grade of minister or when requested by the President or the Secretary of State and in no case does it contain more names than there are vacancies to fill. Each list is signed by the Chairman and at least three members of the Board, and if approved by the Secretary of State, is submitted to the President.—*Act of May 24, 1924, Sec. 5; E. O. June 7, 1924, Sec. 5 (c).*

The Foreign Service Personnel Board submits to the Secretary of State the names of those Foreign Service officers who are recommended for designation as counselors of embassy or legation.—*E. O. June 7, 1924, Sec. 5 (d).*

Separation from the Service. Whenever it is determined that the efficiency rating of an officer is poor and below the required standard for the Service, the Personnel Board so notifies the officer, and if after due notification the rating of such officer continues nevertheless to be unsatisfactory, his name is reported to the Secretary of State with a full recital of the circumstances and a recommendation of the Board for separation from the Service. Whenever such recommendation for separation from the Service is made, the Board at the same time notifies the officer of the action taken.—*E. O. June 7, 1924, Sec. 6.*

7. *Foreign Service Personnel Board.*—The Foreign Service Personnel Board is composed as follows: The Undersecretary of State who is the Chairman, two Assistant Secretaries of State designated by the Secretary of State, and the members of the Executive Committee of the Foreign Service Personnel Board.

Duties of the Board. (a) To examine into the character, ability, efficiency, experience and general availability of all Foreign Service officers and to submit to the Secretary of State such information as he may require regarding the efficiency records of such officers.

(b) From time to time, as vacancies arise, to submit to the Secretary of State lists of those Foreign Service officers whose records of efficiency entitle them to advancement in the Service, and who are therefore recommended for promotion, and the names of those officers and employees in the Department of State who, after five years of continuous service, and because of special ability and merit are recommended for appointment by transfer to the position of Foreign Service officer. All such lists are signed by the Chairman and at least three members of the Board, except in the case of a tie vote when the Secretary of State decides.

(c) To submit to the Secretary of State the names of those Foreign Service officers who, in the opinion of the Board, have demonstrated special capacity for promotion to the grade of minister. Each list thus submitted enumerates the names of the officers in the order of merit and is complete in itself, superseding all previous lists. A list is submitted to the Secretary of State whenever there is a vacancy in the grade of minister or when requested by the President or the Secretary of State and in no case does it contain more names than there are vacancies to fill. Each such list is signed by the Chairman and at least three members of the Board, and if approved by the Secretary of State, is submitted to the President.

(d) To submit to the Secretary of State the names of those Foreign Service officers who are recommended for designation as counselors of embassy or legation.

(e) To recommend to the Secretary of State the assignment of Foreign Service officers to posts and the transfer of such officers from one branch of the Service to the other according to the needs of the Service.

(f) To consider controversies and delinquencies among the service personnel and recommend to the Secretary appropriate disciplinary measures where required.

(g) For the purposes stated in paragraphs (e) and (f), the Undersecretary of State, and two Assistant Secretaries of State who are members of the Board are deemed to constitute the full Board, but the Executive Committee has the power of recommendation.

Proceedings of the Board. The members of the Board, individually and collectively, have authority to examine all records and data relating to the personnel of the Service.

All action taken by the Board is strictly non-partisan, and based exclusively upon the record of efficiency of the officers concerned.

The proceedings of the Board are strictly confidential, but the Chairman may, and it is a part of his duty, within a reasonable time prior to each meeting of the Board for recommending promotions, demotions or removals, to invite the Chairman of the Senate Committee on Foreign Relations and the Chairman of the House Committee on Foreign Affairs or some Committee member designated by the Chairman, to sit with the Board through its deliberations without, however, participating in its decisions.

The Board elects its secretary from among its members.

The Executive Committee of the Foreign Service Personnel Board is composed of a Chairman, and two Foreign Service officers of high rank representing both the diplomatic and the consular branches of the Foreign Service, selected by the other members of the Personnel Board with the approval of the Secretary of State.

The Secretary of State prescribes the duties of the Executive Committee.—*E. O. June 7, 1924, Sec. 4–11.*

8. *Efficiency records of Foreign Service officers.*—The Department of State keeps a permanent efficiency record for Foreign Service officers of all grades covering each officer's fitness for the Service as shown by his ability, promptness and diligence in performing the duties of his office; his general conduct in office; and the character of the reports which he makes.—*38 Stat. L. 806, as amended, Act of May 24, 1924, Sec. 6.*

9. *The Foreign Service School.*—There is established in the Department of State a Foreign Service School for the instruction of new appointees.

The Foreign Service School is under the direction of a Foreign Service School Board, composed of the following members: the Undersecretary of State, two Assistant Secretaries of State designated by the Secretary of State, the Chairman of the Executive Committee of the Foreign Service Personnel Board, and the Chief Instructor of the Foreign Service School. The School Board acts in all matters with the approval of the Secretary of State.

The Chief Instructor is selected by the other members of the School Board from among the officers of the Foreign Service, with the approval of the Secretary of State.

Other instructors are selected from among the qualified officers of the Department of State, the Foreign Service, the other executive departments of the Government, and other available sources in the discretion of the School Board.

The term of instruction in the Foreign Service School is one year which is considered a period of probation during which the new appointees are judged as to their qualifications for advancement and assignment to duty. At the end of the term, recommendations are made to the Secretary of State by the Personnel Board for the dismissal of any who have failed to meet the required standard of the Service.

The Secretary of State prescribes rules and regulations for the governance of the Foreign Service School.—*E. O. June 7, 1924, Sec. 25–30.*

10. *Appointments of secretaries in the diplomatic service and consular officers.*—The President nominates, and by and with the advice and consent of the Senate, appoints secretaries in the diplomatic service, consuls general, consuls, vice consuls of career, and student interpreters.—*U. S. Constitution, Art. II, Sec. 2.* Vice consuls

not of career and consular agents are appointed by the Secretary of State.—*R. S. 1695.*

Foreign Service officers may be appointed as secretaries in the diplomatic service or as consular officers, or both, but all such appointments are made by and with the advice and consent of the Senate.—*Act of May 24, 1924, Sec. 4.*

11. *Assignment to duty of Foreign Service officers.*—Foreign Service officers may be assigned to duty in either the diplomatic or the consular branch of the Foreign Service at the discretion of the President.—*Act of May 24, 1924, Sec. 4.*

The President may, whenever he considers it advisable so to do, designate and assign any Foreign Service officer as counselor of embassy or legation.—*Act of May 24, 1924, Sec. 16.*

Any Foreign Service officer may, within the discretion of the President, be appointed to act as commissioner, chargé d'affaires, minister resident or diplomatic agent, for such period as the public interests may require, without loss of grade, class, or salary, provided, however, that no such officer shall receive more than one salary.—*Act of May 24, 1924, Sec. 17.*

Any Foreign Service officer may be assigned for duty in the Department of State without loss of class or salary, such assignment to be for a period of not more than three years, unless the public interests demand further service, when such assignment may be extended for a period not to exceed one year. Foreign Service officers may also be detailed for special duty not at their posts nor in the Department of State, but such special duty shall not continue for more than sixty days unless in the case of trade conferences or international gatherings, congresses or conferences.—*Act of May 24, 1924, Sec. 14.*

12. *Official acts of Foreign Service officers.*—All official acts of Foreign Service officers while on duty in either the diplomatic or the consular branch of the Foreign Service shall be performed under their respective commissions as secretaries or as consular officers.—*Act of May 24, 1924, Sec. 4.*

13. *Oath of office.*—Whenever any person is appointed to any office of honor or trust under the Government of the United States he shall, before entering upon the duties of his office, take and subscribe the following oath: "I, A. B., do solemnly swear (or affirm) that I will support and defend the Constitution of the United States against all enemies, foreign and domestic; that I will bear true faith and allegiance to the same; that I take this obligation freely, without any mental reservation or purpose of evasion; and that I will well and faithfully discharge the duties of the office on which I am about to enter. So help me God."—*R. S. 1757.*

The foregoing requirement applies to all Foreign Service officers, secretaries in the diplomatic service, consuls general, consuls, vice consuls, student interpreters, and if citizens of the United States, to consular agents.

The oath of office may be taken before any officer who is authorized either by the laws of the United States, or by the local municipal law, to administer oaths, in the State, Territory, or District where such oath may be administered.—*R. S. 1758.* The oath may not, however, be taken abroad except before some officer of the United States authorized to administer oaths.

14. *Bonds of Foreign Service officers, secretaries in the diplomatic service, consuls general, consuls, and vice consuls of career, and others.*—Every secretary, consul general, consul, vice consul of career, or Foreign Service officer, before he receives his commission or enters upon the duties of his office, shall give to the United States a bond, in such form as the President shall prescribe, with such sureties, who shall be permanent residents of the United States, as the Secretary of State shall approve, in a penal sum not less than the annual compensation allowed to such officer, conditioned for the true and faithful accounting for, paying over and delivering up of all fees, moneys, goods, effects, books, records, papers, and other property which shall come to his hands or to the hands of any other person to his use as such officer under any law now or hereafter enacted, and for the true and faithful perfomance of all other duties now or hereafter lawfully imposed upon him as such officer. Such bond shall cover by its stipulations all official acts of such officer, whether as Foreign Service officer, or as secretary in the diplomatic service, consul general, consul, or vice consul of career.—*Act of May 24, 1924, Sec. 9.*

Bonds of vice consuls not of career. Vice consuls not of career shall give bond, with such sureties and stipulations as the Secretary of State may direct.

Bonds of consular agents. No bond is required of consular agents, but a con-

sular officer having an agent under his supervision, may take from him such bond as the officer may deem proper to protect himself.

15. *Custody, withdrawal and cancellation of bonds, and sureties on bonds.*—The bonds of officers in the consular branch of the Foreign Service, after their approval by the Secretary of State, are deposited with the Secretary of the Treasury.—*Act of May 24, 1924, Sec. 9.*

Withdrawal and cancellation of bonds. Under the rule of the Treasury Department, bonds, when filed with it, can not be withdrawn from its custody; and they are not canceled on the retirement of the officer from the Service.

Sureties on bonds. The sureties on bonds of salaried officers shall be permanent residents of the United States or a regularly authorized surety company incorporated under the laws of the United States or of one of the States, and must be approved by the Secretary of State.—*28 Stat. L. 279.* Married women will not be accepted as sureties.—*15 Op. Att. Gen. 472.*

16. *Foreign Service inspectors.*—The provisions of section 4 of the Act of April 5, 1906, relative to the powers, duties and prerogatives of consuls general at large are applicable to Foreign Service officers detailed for the purposes of inspection, who, under the direction of the Secretary of State, inspect the work of offices in the Foreign Service, both in the diplomatic and the consular branches.—*Act of May 24, 1924, Sec. 10.*

Each consular office shall be inspected at least once in every two years. Whenever the President has reason to believe that the business of a consulate or a consulate general is not being properly conducted and that it is necessary for the public interest, he may authorize any inspector to suspend the consul or consul general, and administer the office in his stead for a period of not exceeding ninety days. In such case the inspector so authorized shall have power to suspend any vice consular officer or clerk in said office during the period aforesaid.—*34 Stat. L. 100.*

The suggestions and directions given by a Foreign Service inspector at the time of any inspection of an office must be implicitly followed and obeyed, in the absence of contrary instructions from the Department of State. The principal officer will insure that the consular agents under his supervision comply with the inspector's directions left with them. He will also bring the inspector's directions to the attention of his successor in office.

An officer, upon assuming charge of an office, will accept the suggestions and instructions left for his predecessor as applicable to himself and to his own administration of the office.

17. *Vice consuls.*—There are two categories of vice consuls, those of career and those who are not of career. The former are Foreign Service officers commissioned as vice consuls; the latter are commissioned by the Secretary of State as occasion may require, usually from among the clerks at consular offices.

Duties of vice consuls. All vice consuls are consular officers subordinate to principal consular officers (consuls general and consuls), exercising and performing the duties within the limits of their consulates at the same or at different points and places from those at which the principals are located.—*R. S. 1674; 38 Stat. L. 806; 33 Fed. Rep. 167.*

Vice consuls, whether of career or not, perform such duties of the consular offices to which they may be assigned as are described in the Consular Regulations and Laws of the United States, and which they may be directed to perform by the principal officer under whom they serve. When the principal officer is absent, the ranking consular officer, or, if there be two of equal grade, the one whose commission bears the earlier date, in the absence of contrary instructions from the Department of State, will assume full charge of the office under his bond.

18. *Vice consuls not of career.*—Vice consuls not of career are not eligible to advancement in the Service without undergoing examination and qualifying for appointment as Foreign Service officers. They are appointed to particular posts, and receive certificates of appointment to those posts, which are forwarded to them through the appropriate diplomatic missions.

Citizenship. Every vice consul must be an American citizen.—*40 Stat. L. 1333.*

Removal of vice consuls. Consuls general and consuls have no power to remove vice consuls assigned to their offices or to service under their supervision. In cases of serious insubordination, threatened destruction or loss of government property, or conduct likely to injure the reputation of the consulate, the principal consular officer may suspend the vice consul responsible therefor from office pending a review

of the facts by the Secretary of State. The Secretary of State will invariably be notified by telegraph of a suspension. A report of the facts, accompanied by a signed statement of the vice consul in his own behalf, will be forwarded by the most expeditious method. While under suspension a vice consul may not perform any official act.

19. *Student interpreters.*—Student interpreters are Foreign Service officers, unclassified, who are appointed by the President by and with the advice and consent of the Senate and assigned to posts, generally in oriental countries, for the purpose of studying and perfecting themselves in the languages of such countries.

After acquiring a knowledge of the language of the country and passing the first examination for promotion, usually at the end of the second year of service, student interpreters are advanced to the grade of vice consul. After passing the second examination, usually at the end of the third or fourth year, they are advanced to a higher salary class. They are thereafter eligible for advancement in the Service without further examination, on the basis of demonstrated ability and efficiency.

20. *Consular Agents.*—Consular agents are appointed by the Secretary of State, usually upon the nomination of the principal consular officer.—*R. S. 1695.* The practice of making such nominations must not be construed to limit the authority of the Secretary of State to appoint these officers without such previous nomination by the principal officer.

The term "Consular agents" denotes consular officers subordinate to principal officers exercising the powers vested in them and performing the duties prescribed for them by regulation of the President, at posts or places different from those at which such principals are located.—*R. S. 1674, as amended, 38 Stat. L. 806.* Their functions are not, in all respects, as extensive as those of the principal officer. Though they act at places different from the seat of the principal office and their duties are in substance the same toward persons desiring consular services, they act only as the representative of the principal, and are subject and subordinate to him. They are not authorized to correspond with the Department of State, unless through the principal or under exceptional circumstances; they make no returns or reports directly to the Department, and they are not permitted to render accounts or make any drafts for expenditures on the departments of the Government unless under express instructions.

Consular agents are subject, like other consular officers, to the provisions of law and the instructions of the Department of State. As soon as a consular agent has entered upon his duties, a specimen of his signature and an impression of his official seal should be sent to the Department.

Citizenship of consular agents. In all cases, where it is practicable, consular agents should be citizens of the United States, and none other should be recommended for appointment, unless citizens of proper character and standing can not be found.

Acting consular agents. No consular agent has authority to appoint a subagent. In case of emergency, or in the absence of the consular agent on leave, the principal consular officer may designate, with the approval of the Department of State, a suitable person to perform the duties under the title of Acting Consular Agent. The principal consular officer should, at the time the change is made, report to the Department the name of the person whom he has designated as Acting Consular Agent during the temporary absence of the agent from his post, and accompany the report with the signature of the substitute and an impression of the official seal of the agency.

A person placed temporarily in charge of a consular agency should sign as Acting Consular Agent. Acting consular agents must not perform notarial acts.

21. *Clerks at consulates.*—Clerks at consulates are, so far as practicable, appointed under Civil Service rules and regulations.—*42 Stat. L. 602.* In practice they are frequently nominated by the consuls but their appointment is subject to approval by the Secretary of State and the Department reserves the right to fill such clerkships directly by appointment from the United States or from American citizens abroad. In nominating persons for clerkships consuls must give the qualifications of the nominees in the form prescribed by the Department together with the proposed amount of compensation of each clerk and the allowance from which paid. No clerk shall receive increased compensation without the authority of the Secretary of State.

Citizenship of clerks. Preference shall be given to American citizens in nominations for clerkships whenever properly qualified persons can be found.

No person who is not an American citizen shall be appointed at any consulate general or consulate to any clerical position the salary of which is $1,000 or more.—*34 Stat. L. 101.*

Members of consular officer's family. The appointment of members of a consular officer's family will be permitted only in exceptional cases where the expediency of such an appointment and the qualifications of the applicant are clearly shown. In no case does the Department permit the appointment of the female members of the consular officer's family as clerks in his office.

Changes in clerical personnel. Consular officers must report promptly to the Department every change in the clerical personnel of their offices.

Efficiency reports and records. The Department maintains a system of efficiency reports and records applying to clerks, messengers and other non-career subordinates including consular agents. These records are consulted in connection with transfers and increases in compensation.

Confidential nature of reports and recommendations. The efficiency records of clerks and other subordinates are strictly confidential and no efficiency report or rating is to be divulged by any consular officer except to Foreign Service Inspectors and supervising consuls general. All recommendations for increases in compensation for clerks or other subordinates are to be held confidential and in no instance disclosed to the persons concerned. Recommendations for the commissioning of clerks as vice consuls shall be treated in a like manner.

Clerks commissioned as vice consuls. A clerk at a consulate will be commissioned as vice consul only when conditions at the post make an additional signing officer necessary.

22. *Prohibition against engaging in business.*—No consular officer whose salary exceeds one thousand dollars a year, shall, while he holds his office, be interested in or transact any business as a merchant, factor, broker or other trader, or as a clerk or other agent for any such person to, from, or within the port, place, or limits of his jurisdiction, directly or indirectly, either in his own name or in the name or through the agency of any other person; nor shall he practice as a lawyer for compensation or be interested in the fees or compensation of any lawyer; and he shall in his official bond stipulate as a condition thereof not to violate this prohibition.—*R. S. 1699, 1700; 34 Stat. L. 101.*

No consular officer whose salary exceeds $1,000. per annum shall make any investments of money within the limits of the country from the government of which he has received his recognition or exequatur. This prohibition applies to the owning of real estate, or of bonds, shares, stocks, mortgages, etc. There is no objection to a consular officer's depositing money in a bank which happens to give interest on current accounts or fixed deposits; and a consular officer may buy a house and land for his own use, but he may not do so as an investment or speculation.

23. *Jurisdiction of consuls general.*—All consuls general are charged with the ordinary duties of a consul within the prescribed limits of their respective districts.

24. *Limits of consular districts.*—The statute authorizes the President to define the extent of country to be embraced within any consulate.—*R. S. 1695.* The consular commission usually describes these limits as including all places nearer to the official residence of a consul than to the residence of any other consul within the same allegiance. This is to be regarded as the rule by which the limits of the respective districts are to be determined in the absence of instructions specifically defining the consular district. In no case, however, is a consular officer authorized to take jurisdiction of consular business outside of the state from the government of which he receives his exequatur. The Department of State may, however, in its discretion, assign a consular agency to a consulate without regard to nearness of geographical situation. The limits of a consular agency are always within the district of the consulate to which it is attached, unless the Department shall determine otherwise.

25. *Provisions of law in force after July 1, 1924.*—All provisions of law enacted before July 1, 1924, relating to secretaries in the diplomatic service and to consular officers, which are not inconsistent with the act of May 24, 1924, entitled "An Act for the reorganization and improvement of the Foreign Service of the United States and for other purposes", are applicable to Foreign Service officers when they are designated for service as diplomatic or as consular officers. All

provisions of law, however, which are inconsistent with the act of May 24, 1924, are repealed.—*Act of May 24, 1924, Sec. 20.*

Article II of the Consular Regulations, 1896, entitled "Appointment and Qualification", is hereby canceled and the following substituted:

ARTICLE II Supersedes No. 342

RETIREMENT OF FOREIGN SERVICE OFFICERS

31. *Retirement of Foreign Service officers provided by law.*—The law provides for the retirement of Foreign Service officers on account of age or disability and authorizes the President to prescribe rules and regulations to give effect to the statute. The administration of the retirement system is placed under the direction of the Secretary of State.—*Act of May 24, 1924, Sec. 18.*

32. *Retirement on account of age.*—When any Foreign Service officer has reached the age of sixty-five years and rendered at least fifteen years of service he is retired, but the President may in his discretion retain any such officer on active duty for such period not exceeding five years as he may deem for the interest of the United States.—*Act of May 24, 1924, Sec. 18 (d).*

33. *Retirement on account of disability.*—Any Foreign Service officer who before reaching the age of retirement becomes totally disabled for useful and efficient service by reason of disease or injury not due to vicious habits, intemperance, or willful misconduct on his part, is, upon his own application or upon order of the President, retired on an annuity. In each case such disability is determined by the report of a duly qualified physician or surgeon designated by the Secretary of State to conduct the examination. Unless the disability be permanent, a like examination is made annually in order to determine the degree of disability, and the payment of annuity ceases from the date of the medical examination showing recovery.

Fees for examinations under this provision, together with reasonable traveling and other expenses incurred in order to submit to examination, are paid out of the Foreign Service Retirement and Disability Fund.—*Act of May 24, 1924, Sec. 18 (j).*

34. *Ambassadors, ministers, and persons appointed to the Department.*—Any diplomatic secretary or consular officer who prior to July 1, 1924, was, or any Foreign Service officer who subsequent to July 1, 1924, may be, promoted from the classified service to the grade of ambassador or minister, or appointed to a position in the Department of State is entitled to all the benefits of retirement in the same manner and under the same conditions as Foreign Service officers.—*Act of May 24, 1924, Sec. 18 (o).*

35. *Period of service.*—The period of service is computed from the date of original oath of office as secretary in the diplomatic service, consul general, consul, vice consul, deputy consul, consular assistant, consular agent, commercial agent, interpreter, or student interpreter, and includes periods of service at different times in either the diplomatic or consular service, or while on assignment to the Department of State, or on special duty, but all periods of separation from the service and so much of any period of leave of absence as may exceed six months are excluded. Service in the Department of State prior to appointment as a Foreign Service officer may be included in the period of service under certain conditions.—*Act of May 24, 1924, Sec. 18 (p).*

The President has the authority to establish by Executive order, a list of places in tropical countries which by reason of climatic or other extreme conditions are to be classed as unhealthful posts, and each year of duty at such posts, while so classed, inclusive of regular leaves of absence, shall be counted as one year and a half, and so on in like proportion in reckoning the length of service for the purposes of retirement.—*Act of May 24, 1924, Sec. 18 (k).*

36. *Foreign Service Retirement and Disability Fund.*—Five per centum of the basic salary of all Foreign Service officers eligible to retirement is contributed to the Foreign Service Retirement and Disability Fund and the Secretary of the Treasury causes such deductions to be made and the sums to be transferred on the books of the Treasury Department to the credit of the Foreign Service Retirement and Disability Fund for the payment of annuities, refunds, and allowances, provided that all basic salaries in excess of $9,000. per annum are treated as $9,000.—*Act of May 24, 1924, Sec. 18 (c).*

In case service in the Department of State prior to appointment as a Foreign Service officer is included in the period of service, the officer shall pay into the Foreign Service Retirement and Disability Fund a special contribution equal to 5 per centum of his annual salary for each year of such employment, with interest thereon to the date of payment compounded annually at 4 per centum.—*Act of May 24, 1924, Sec. 18 (p).*

The Secretary of State submits annually a comparative report showing all receipts and disbursements on account of refunds, allowances, and annuities, together with the total number of persons receiving annuities and the amounts paid them, and submits also annually estimates of appropriations necessary to continue the retirement and disability system in full force. The law provides that in no event shall the aggregate total appropriations exceed the aggregate total of the contributions of the Foreign Service officers theretofore made, and accumulated interest thereon.—*Act of May 24, 1924, Sec. 18 (a).*

The Secretary of the Treasury invests from time to time in interest-bearing securities of the United States such portions of the Foreign Service Retirement and Disability Fund as in his judgment may not be immediately required for the payment of annuities, refunds, and allowances, and the income derived from such investments constitutes a part of said Fund.—*Act of May 24, 1924, Sec. 18 (b) and (g).*

37. *Officers in the Service before July 1, 1924.*—Those officers who retire before having contributed for each year of service shall have withheld from their annuities to the credit of the Foreign Service Retirement and Disability Fund such proportion of 5 per centum thereof as the number of years in which they did not contribute bears to the total length of service.—*Act of May 24, 1924, Sec. (f).*

38. *Annuities.*—Annuities are paid to retired and disabled Foreign Service officers under the following classification, based upon length of service and at the following percentages of the average annual basic salary for the ten years next preceding the date of retirement:

Class A, 30 years or more, 60 per centum,
Class B, from 27 to 30 years, 54 per centum,
Class C, from 24 to 27 years, 48 per centum,
Class D, from 21 to 24 years, 42 per centum,
Class E, from 18 to 21 years, 36 per centum,
Class F, from 15 to 18 years, 30 per centum.

—*Act of May 24, 1924, Sec. 18 (e).*

39. *Employment after retirement.*—Whenever any Foreign Service officer, after the date of his retirement, accepts a position of employment, the emoluments of which are greater than the annuity received by him from the United States Government by virtue of his retirement under the Act of May 24, 1924, the amount of the said annuity during the continuance of such employment is reduced by an equal amount. All retired Foreign Service officers must notify the Secretary of State once a year of any positions of employment accepted by them stating the amount of compensation received therefrom and whenever any such officer fails to so report it is the duty of the Secretary of State to order the payment of the annuity to be suspended until such report is received.—*Act of May 24, 1924, Sec. 18 (m).*

40. *Separation from the Service.*—Whenever a Foreign Service officer becomes separated from the Service except for disability before reaching the age of retirement, 75 per centum of the total amount of contribution from his salary without interest is returned to him.—*Act of May 24, 1924, Sec. 18 (l).*

41. *Death before retirement.*—In case a Foreign Service officer dies without having reached the retirement age the total amount of his contributions with accrued interest is paid to his legal representatives.—*Act of May 24, 1924, Sec. 18 (i).*

42. *Death of annuitants.*—In case an annuitant dies without having received in annuities an amount equal to the total amount of his contributions from salary with interest thereon at four per centum per annum compounded annually up to the time of his death, the excess of the said accumulated contributions over the said annuity payments is paid to his or her legal representatives.—*Act of May 24, 1924, Sec. 18 (i).*

43. *Discontinuance of annuity.*—When an annuity is discontinued before the annuitant has received a sum equal to the total amount of his contributions with accrued interest, the difference is paid to him or to his legal representatives.—*Act of May 24, 1924, Sec. 18 (j).*

44. *Retirement and disability moneys not subject to legal process.*—None of the moneys mentioned in Section 18 of the Act of May 24, 1924, are assignable, either in law or equity, or subject to execution, levy, or attachment, garnishment, or other legal process.—*Act of May 24, 1924, Sec. 18(h).*

45. *Recall to Service.*—In the event of public emergency any retired Foreign Service officer may be recalled temporarily to active service by the President and while so serving he is entitled in lieu of his retirement allowance to the full pay of the class in which he is temporarily serving.—*Act of May 24, 1924, Sec. 19.*

Paragraph 51 is amended to read as follows:

51. *Recognition of subordinate officers.*—It is customary to transmit to the diplomatic representative, for recognition and authority, the certificates of appointment of all subordinate officers. And in such cases, before entering upon his official duties, the consular officer will wait until he receives recognition from the government of the country or permission from the local authorities to act. The subordinate officers who are required to give bonds, are not authorized to enter upon the discharge of their duties until the bonds have been executed and approved. Until bonds have been filed and approved the accounts of consular officers will not be adjusted and such officers are without authority to draw on the Government.

Paragraph 69 is amended to read as follows:

69. *Notice on entering on duties.*—Having entered on the duties of his office, the consular officer, if a consul general, should immediately give notice thereof to the Department of State and to the diplomatic representative; if a consul, he will give like notice to the Department and to the consul general to whom he may be subordinate, or, if there be no consul general, then to the diplomatic representative, if there be one. He will also inform the principal consular officers of the United States in the country, and will also send his official card to, or call personally upon, the proper local officers and the consular officers of other countries in the place, as the custom may be.

Article VI of the Consular Regulations, 1896, entitled "Supervisory Powers of Consuls General", is hereby amended to read as follows:

94. *Certain consuls general to exercise supervisory powers.*—Certain consuls general are charged with the supervision of the consular offices and officers subordinate to them. Such consuls general are the immediate official superiors of the consular officers within their respective jurisdictions. They will enforce full compliance with the provisions of law, the Consular Regulations, and the Department's instructions, and make reports and recommendations tending to the improvement of the Service under their supervision. Supervisory powers are usually exercised by correspondence; the supervisory jurisdiction, however, does not extend to accounts, consuls general being in no sense auditing officers.

95. *Jurisdictional limits.*—Unless otherwise provided, a consul general has supervisory power over all the consular offices and officers in the same country, colony or province with himself. Where there are two or more consuls general accredited to the same foreign power their jurisdictional limits are determined by the Secretary of State. If need therefor arises, consuls general may be given supervisory power over consular offices not in the same territorial or political jurisdiction.

96. *Inspections.*—Permission may be granted to consuls general, in appropriate circumstances, to visit the several consular offices in their respective jurisdiction for the purposes of inspection and report. These visits will not, however, be authorized to be made more frequently than once a year, and such authorization must be obtained in advance from the Secretary of State. The actual and necessary expenses for travel and subsistence in making such visits will be paid by the Government.

97. *Correspondence.*—In the absence of other instructions from the Department consuls will transmit under open cover, through their respective consuls general, their correspondence with and reports to the Department, and such of their correspondence as is required to be sent through the Department. If, for special reasons, a consular officer is permitted to forward his correspondence direct to the Department, he will promptly supply to the supervising consul general copies of all correspondence so sent. Accounts and correspondence relative thereto should, however, be sent by a consul directly to the Department, or to the Department for

the Comptroller General of the United States, as the case may be; but the accounts of vice consuls, consular agents and other subordinate officers must be transmitted through their principal officers.

98. *Leaves of absence and nomination of substitute and subordinate officers.*—Requests for leave of absence, and the nomination of substitute and subordinate officers, by consuls must, in the absence of other instructions from the Department of State, be transmitted through the supervising consul general and receive his written approval. In all cases such requests should be addressed to the Secretary of State, and not to the superior officer in the country of official residence.

Article XXV of the Consular Regulations, 1896, entitled "Compensation of Consular Officers" is canceled and the following substituted:

ARTICLE XXV

COMPENSATION OF CONSULAR OFFICERS

491. *Three classes of officers.*—In regard to the sources of their compensation there are three classes of consular officers, viz., (1) Those who are Foreign Service officers and receive their compensation as such from appropriations made by Congress, (2) Those who are not Foreign Service officers but who are paid from specific appropriations made by Congress, and (3) consular agents receiving no regular remuneration but who are compensated from the fees collected for official services and in payments from the Treasury of the United States for services to American vessels and seamen.

492. *Foreign Service officers.*—Foreign Service officers assigned to the consular branch of the Foreign Service receive salaries fixed by law, and are entitled to compensation at the rate of their respective salaries as Foreign Service officers, with the following exceptions:

(1) *Absence from post.* (a) No consular officer shall receive salary for the time during which he may be absent from his post, by leave or otherwise, beyond the term of sixty days in the aggregate in any one calendar year; but the time equal to that usually occupied in going to and from the United States, in case of the return, on leave, of such consular officer to the United States may be allowed in addition to the sixty days.—*R. S. 1742.* (b) When a principal officer is absent from his post for a period exceeding ten days at any one time, without permission previously obtained from the President through the Department of State, no portion of the salary will be allowed for any time in excess of the ten days, unless the propriety and necessity of the absence shall be made clear to the Department.—*R. S. 1741; 18 Stat. L. 77.*

(2) *Recall for malfeasance.* A consular officer is not entitled to compensation in case he is recalled for malfeasance, or resigns in anticipation of such recall, except to the date of such resignation, or of the receipt by him, or at the consulate, of the notification of the recall. In neither case will compensation be allowed for the time occupied in the transit to the United States.—*R. S. 1740; 9 Op. Att. Gen. 89.*

(3) *Excess travel time.* (a) A consular officer traveling under orders is not entitled to salary for any time in excess of that actually and necessarily occupied in performing the journey, by direct route, unless specific orders to the contrary have been issued by the Department of State. (b) A consular officer traveling on leave with permission to visit the United States is not entitled to salary for any time in excess of that actually and necessarily occupied in proceeding by direct route from his post to the city of Washington and from Washington to his place of residence, or vice versa, unless specific orders to the contrary have been issued by the Department of State.

493. *Compensation when performing diplomatic duties.* Within the discretion of the President, any Foreign Service officer may be appointed to act as commissioner, chargé d'affaires, minister resident, or diplomatic agent for such period as the public interest may require without loss of grade, class, or salary, provided that no such officer shall receive more than one salary.—*Act of May 24, 1924, Sec. 17.* With the exception of commissioner, these appointments are subject to confirmation by the Senate.

494. *Additional compensation while in charge.* For such time as any Foreign Service officer is lawfully authorized to act as chargé d'affaires ad interim or to

assume charge of a consulate general or consulate during the absence of the principal officer at the post to which he shall have been assigned, he receives, if his salary is less than one-half that of such principal officer, in addition to his salary as Foreign Service officer, compensation equal to the difference between such salary and one-half of the salary provided by law for the ambassador, minister or principal consular officer, as the case may be.—*R. S. 1685, as amended, Act of May 24, 1924, Sec. 17.*

The President is authorized to grant to consular offices at capitals of countries where there is no diplomatic mission of the United States representation allowances out of any money which may have been appropriated for such purpose from time to time by Congress, the expenditure of such representation allowance to be accounted for in detail to the Department of State quarterly under such rules and regulations as the President may prescribe.—*Act of May 24, 1924, Sec. 12.*

495. *Vice consuls not of career.*—Vice consuls not of career are compensated as clerks from the regular clerk hire allowance of the office where their service is performed. They receive no compensation as vice consuls.

Vice consuls not of career, receiving compensation as clerks, are entitled to compensation when traveling to and from their posts, or elsewhere, under orders of the Secretary of State, or while on leave of absence, subject to the law and regulations governing leaves of absence.

Vice consuls while in charge of a consulate general or consulate during the absence of the principal officer are entitled to additional compensation in the same manner and under the same conditions as Foreign Service officers.—*Act of February 27, 1925.*

496. *Student interpreters.*—Student interpreters receive their salaries as Foreign Service officers. In addition they may be provided with tuition and quarters.

497. *Consular agents.*—Consular agents are paid by one-half of the fees received in their offices, up to a maximum sum of $1,000, in any one year, the other half being accounted for and paid into the Treasury of the United States. If the total amount of fees received at a consular agency during a fiscal year exceeds $2,000, such surplus must be remitted in full to the Treasury of the United States in addition to the $1,000, due the government as prescribed above.—*34 Stat. L. 101.*

498. *Resignation in the United States.*—The right to compensation of a consular officer who resigns while in the United States on leave of absence terminates with the date of the acceptance of the resignation, or the lapse of his statutory leave, whichever first occurs.

499. *Allowance to widow or heirs.*—It has been provided by law that whenever a consular officer dies in a foreign country in the discharge of his duty, there shall be paid to his widow, or, if no widow survive him, then to his heirs at law, a sum of money equal to the allowance made to such officer for the time necessarily occupied in making the transit from his post of duty to his residence in the United States. The amount is paid directly to the widow, or heirs, as the case may be.—*R. S. Sec. 1749.*

500. *Compensation provided by law is in full for all services.*—The compensation allowed by law to the various Foreign Service officers is in full for all the services rendered and personal expenses incurred by the persons respectively for whom such compensation is provided, of whatever kind such services or personal expenses may be, or by whatever treaty, law, or instructions they are required; and no allowance, other than such as may be specifically provided by law, is made in any case for the outfit or return home of any such officer or person.—*R. S. 1743.*

501. *Fees applicable to salaries.*—Foreign Service officers, who are compensated by salaries appropriated annually by Congress, are authorized to pay themselves from the fees they may collect as consular officers, if these shall be sufficient for the purpose. If not sufficient, drafts may be drawn. The officer in charge of a consular post is required to pay the salaries of all subordinate officers and employees.

A new paragraph, 220, is established, to read as follows:

220. Consular officers not to have pecuniary interest in wages.—No consular officer, nor any person under any consular officer shall make any charge or receive, directly or indirectly, any compensation, by way of commission or otherwise, for receiving or disbursing the wages or extra wages to which any seaman or mariner is entitled who is discharged in any foreign country.—*R. S. 1719.*

Paragraph 275 is amended to read as follows:

275. Consular officers not to have pecuniary interest in relief supplies or in hospitals.—No consular officer, nor any person under any consular officer shall make any charge or receive, directly or indirectly, any compensation, by way of commission or otherwise, for any money advanced to any seaman or mariner who seeks relief from any consulate; nor be interested, directly or indirectly, in any profit derived from clothing, boarding or otherwise supplying any such seaman or mariner.—*R. S. 1719.*

Consular officers are forbidden from owning, maintaining, or having, directly or indirectly, any pecuniary interest in any hospital abroad to which American seamen are sent, whether located within or without their respective jurisdictions. A consular officer known to be so interested, or if interested in like manner in the supplies furnished to destitute seamen, will be removed. Such cases are within the prohibition of the statute, and an officer so offending is liable to prosecution under its provisions.

A new paragraph, 282a, is established, to read as follows:

282a. Consular officers not to have pecuniary interest in transportation.—No consular officer, nor any person under any consular officer shall make any charge or receive, directly or indirectly, any compensation, by way of commission or otherwise, for sending home any seaman or mariner, but such prohibition shall not be construed to relieve or prevent any such officer who is the owner of or otherwise interested in any vessel of the United States, from transporting in such vessel any such seaman or mariner, or from receiving or being interested in such reasonable allowance as may be made for such transportation by law.—*R. S. 1719.*

Paragraph 440 is amended to read as follows:

440. *Relative rank.*—The order of official precedence in the Service is as follows: (1) Consuls general; (2) consuls; (3) vice consuls who are Foreign Service officers; (4) student interpreters commissioned as vice consuls; (5) vice consuls who are not of career; (6) student interpreters not commissioned as vice consuls; (7) consular agents.

In Paragraph 441 the words "see paragraphs 109, 112" are canceled.

In Paragraph 442 the words "(Paragraph 440)" and "see paragraph 76" are canceled.

A new Paragraph, numbered 470, is established as follows:

470. *Home leave under orders.*—The Secretary of State is authorized, whenever he deems it to be in the public interest, to order to the United States on his statutory leave of absence any Foreign Service officer who has performed three years or more of continuous service abroad. The expenses of transportation and subsistence of such officers and their immediate families, in traveling from their posts to their homes in the United States and return, are paid under the same rules and regulations applicable in the case of officers going to and returning from their posts under orders of the Secretary of State when not on leave. While in the United States the services of such officers are available for trade conference work or for such duties in the Department of State as the Secretary of State may prescribe.—*Act of May 24, 1925, Sec. 15.*

Paragraph 472 is amended to read as follows:

472. Leave of absence of vice consuls. The regulations in regard to leave of absence of consular officers are applicable to vice consuls who are of career. Such officers should apply to the Secretary of State for leave, and their applications should be transmitted through, and have the approval of, the principal officer under whom they may be serving. In cases of emergency the principal officer may grant them conditional leave, reporting the fact to the Secretary of State for approval.

A vice consul not of career should make application for leave of absence to his principal officer when the latter is at his post and in charge of the office and the principal officer may grant leave to the vice consul, reporting the fact to the Secretary of State.

When a vice consul is in charge of an office he should apply to the Secretary of State for leave in the same manner as if he were the principal. If there is no commissioned officer at the post to take charge, the fact should be reported to the

Department, by telegraph if necessary, for its consideration. Under no circumstances should a consular office, without previous specific authority granted by the Department, be left in the charge of any person other than a duly commissioned and bonded American consular officer.

Leave of absence of vice consuls not of career, who receive compensation as clerks is subject to the limitations governing leave of absence of clerks.

In Paragraph 473, the words "(Paragraph 467)" are canceled.

Paragraphs 476 and 477 are canceled.

CALVIN COOLIDGE

THE WHITE HOUSE,
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